

25CV02795 Thomas Alexander vs Housing Authority of the County of Santa Barbara et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-05-22

Motion: CMC; Motion: Judgment

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25cv02795>

Source SHA-256: 28a21ce8fade21277bb10df750039397b0713608d6cd846e8b903bb4dc74dc68

Tentative Ruling: Thomas Alexander vs Housing Authority of the County of Santa Barbara et al

Case Number

25CV02795

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 05/22/2026 - 10:00

Nature of Proceedings

CMC; Motion: Judgment

Tentative Ruling

For all reasons discussed herein, Housing Authority of the County of Santa Barbara and Demetico Espinosa's Motion for Judgment on the Pleadings is granted in part and denied in part as follows:

1. The motion is granted, without leave to amend, as to the first and second causes of action;
2. The motion is denied as to the third cause of action;
3. The motion is granted, with leave to amend, as to the fourth cause of action;

4. The motion is denied as to the fifth cause of action.

Plaintiff shall file and serve his first amended complaint no later than June 5, 2026.

Background:

This action commenced on May 5, 2025, by the filing of the complaint by plaintiff Thomas Alexander against defendants Housing Authority of the County of Santa Barbara (Housing Authority), Surf Development Company (Surf Development), Demetico Espinosa, and Eduardo Martinez for: (1) Dangerous Condition of Public Property pursuant to Government Code sections 830 and 835, et seq.; (2) Vicarious Liability pursuant to Government Code sections 815 et seq. and 840 et seq.; (3) Negligence pursuant to Government Code section 815 et seq.; (4) Negligent Hiring, Training, Supervision, or Oversight and/or Retention pursuant to Government Code section 815 et seq.; (5) Negligence; (6) Negligence (against security); and Negligent Hiring Training Supervision.

As alleged in the complaint:

This action arose on August 31, 2024, at the housing complex owned and/or operated and/or managed and/or controlled by Housing Authority, Surf Development, Espinoza, and Does 1-30 (collectively "Owners") (Compl., ¶¶ 8, 19.) Plaintiff was a lawful tenant of the housing complex. (Compl., ¶ 20.)

Housing Authority is a public entity established by operation of law. (Compl., ¶ 2.)

Espinosa is believed to be the onsite property manager of the housing complex. (Compl., ¶ 7.)

On August 31, 2024, plaintiff was at the housing complex when he was violently assaulted by another tenant and resident of the housing complex (the "assault"). (Compl., ¶ 21.) Without any provocation by plaintiff, the assailant punched plaintiff numerous times in the head and face, leaving plaintiff bleeding on the ground before barricading himself in his apartment. (Ibid.) Following a lengthy standoff with the Santa Barbara Sheriff, the assailant was arrested and charged with aggravated mayhem and battery with serious bodily injury, among other charges. (Ibid.)

A security company and security guards, including Martinez, were on duty at the time of the assault and unsuccessfully attempted to stop the assault before calling 911. (Compl., ¶ 22.)

Prior to the assault, plaintiff had reported to the Owners an attack to his person by the same tenant. (Compl., ¶ 24.) Owners assured plaintiff that the assailant would be removed from the housing complex. (Ibid.) Prior to the assault, and with full notice of the danger, defendants failed to remove the assailant from the housing complex and failed to provide any form of adequate security or surveillance of the dangerous condition posed by a violent tenant living in the housing complex. (Compl., ¶ 25.) Prior to the assault, defendants were aware that the tenants of the housing complex, including plaintiff, were in danger of becoming victims of a potentially deadly assault by another tenant, and failed to remove the violent tenant from the housing complex or implement any safety measures. (Compl., ¶ 26.)

As relevant to the present motion, the first, second, third, and fourth causes of action are asserted against Housing Authority. The fifth cause of action is asserted against Espinosa.

On June 13, 2025, Housing Authority and Espinosa answered the complaint with a general denial and 36 affirmative defenses.

On March 24, 2026, Housing Authority and Espinosa filed the present motion for judgment on the pleadings as to the four causes of action asserted against Housing Authority and the one cause of action asserted against Espinosa. Housing Authority and Espinosa argue that they are immune from liability pursuant to the Government Claims Act. They also argue that the dangerous condition claim fails because the dangerous claim asserted is a violent tenant, which is not within the scope of the term "dangerous condition."

Plaintiff opposes the motion.

Analysis:

Request for Judicial Notice

Housing Authority and Espinosa request that the court take judicial notice of: (1) The June 27, 2024, complaint for unlawful detainer filed by Housing Authority against Adam A. Unmuth in Santa Barbara Superior Court Case No. 24CV03596; (2) The docket report in a criminal case filed against Unmuth in Case No. 24CV04605 for a June 14, 2024 assault; (3) The docket report in a criminal case filed against Unmuth in Case No. 24CR06778 for the August 31, 2024 assault; (4) Resolution No. 3868 of the Santa Barbara County Board of Supervisions dated June 30, 1941; and (5) The docket report in the unlawful detainer case filed against Unmuth.

Judicial notice may be taken of: "Regulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States," and "Records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States." (Evid. Code, § 452, subds. (b), (d).)

"The trial court shall take judicial notice of any matter specified in Section 452 if a party requests it and:

"(a) Gives each adverse party sufficient notice of the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request; and

"(b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." (Evid. Code, § 453.)

" 'Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, but do not take judicial notice of the truth of the factual matters asserted in those documents.' " [Citation.] (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400.)

Though not useful in ruling on the subject motion, the court will take judicial notice of the documents but not the truth of the factual matters asserted in the documents.

Motion for Judgment on the Pleadings

A defendant may move for judgment on the pleadings if "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).)

"The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit." (Code Civ. Proc., § 438, subd. (d).)

“Like a demurrer, a motion for judgment on the pleadings attacks defects disclosed on the face of the pleadings or by matters that may be judicially noticed.” (Alameda County Waste Management Authority v. Waste Connections US, Inc. (2021) 67 Cal.App.5th 1162, 1174.)

“All properly pleaded, material facts are deemed true, but not contentions, deductions, or conclusions of fact or law; judicially noticeable matters may be considered. [Citations.]” (Kapsimalis v. Allstate Ins. Co. (2002) 104 Cal.App.4th 667, 672.)

First and Second Causes of Action

As noted above, the first cause of action is Dangerous Condition of Public Property pursuant to Government Code sections 830 and 835, et seq. and the second cause of action is Vicarious Liability pursuant to Government Code sections 815 et seq. and 840 et seq. Both are asserted against Housing Authority.

By way of opposition, plaintiff acknowledges that the first and second causes of action fail to state facts sufficient to constitute causes of action against Housing Authority. Plaintiff states: “Plaintiff has dismissed, or will dismiss before the hearing, the first and second causes of action asserting dangerous-condition theories. The claims that remain are the third cause of action for negligence against the Housing Authority, the fourth cause of action for negligent hiring, training, supervision, and retention against the Housing Authority, and the fifth cause of action for negligence against Espinosa.” (Opp., p. 2, ll. 23-27.)

Although plaintiff has not yet dismissed those causes of action, he has expressly acknowledged that they are improper. As such, the court will grant the motion as to the first and second causes of action, without leave to amend.

Third Cause of Action

As noted above, the third cause of action is Negligence pursuant to Government Code section 815 et seq. and is asserted against Housing Authority.

The allegations, in addition to the general background allegations set forth above, include:

“At all relevant times mentioned herein, Defendants SURF DEVELOPMENT, ESPINOSA, SECURITY COMPANY, SECURITY GUARDS and/or DOES 11-60, were employed and/or contracted by Defendants HOUSING AUTHORITY and/or DOES 1-10, to own, inspect, manage, maintain, control, patrol, secure and/or operate the HOUSING COMPLEX and its tenants, which includes Plaintiff, and were acting within the scope of their employment for Defendants HOUSING AUTHORITY and/or DOES 1-10, and each of them, at the time of the INCIDENT.” (Compl., ¶ 60.)

“By virtue of California Government Code Sections 815.2 and 815.4, Defendants HOUSING AUTHORITY and/or DOES 1-10, are jointly and severally liable for the conduct of their employees and agents.” (Compl., ¶ 61.)

“At all relevant times mentioned herein, Defendants, and each of them, breached their duty to Plaintiff by negligently acting or failing to act in a manner that a reasonably careful person would under the same or similar circumstances or, in addition or in the alternative, by grossly negligently acting or failing to act with lack of any care and/or in an extreme departure from what a reasonably careful person would have done. Said negligent acts or failure to act and/or gross negligent acts or failure to act includes one or more of the following, without limitation:

Failing to evict a known dangerous and violent tenant from the HOUSING COMPLEX, even after having reasonable notice that said tenant was threatening the safety of the other tenants, including Plaintiff.

Failing to adequately protect Plaintiff and others from unwarranted and unjustified violence and potentially deadly assault, even after having reasonable notice that such criminal/violent acts were foreseeable.

Failing to adequately provide security for the protection of the tenants of the HOUSING COMPLEX, including Plaintiff.

Failing to warn Plaintiff and other tenants that they might be victims of an assault by a fellow tenant of the HOUSING COMPLEX.

Failing to properly own, manage, supervise, monitor, maintain, control the HOUSING COMPLEX in a careful, safe, protective and lawful manner.

Failing to keep the HOUSING COMPLEX in a safe and habitable condition.” (Compl., ¶ 63.)

“Except as otherwise provided by statute:

“(a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.

“(b) The liability of a public entity established by this part (commencing with Section 814) is subject to any immunity of the public entity provided by statute, including this part, and is subject to any defenses that would be available to the public entity if it were a private person.” (Gov. Code, § 815.)

“As that language indicates, the intent of the Tort Claims Act is to confine potential governmental liability, not expand it. [Citation.]” (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1179.)

By way of reply brief, Housing Authority and Espinosa argue that plaintiff’s claim against the Housing Authority, as it relates to the third cause of action, is one of direct liability rather than vicarious liability. The court does not agree.

By way of the complaint, and his opposition, plaintiff bases his claim of liability on Government Code section 815.2. That section reads:

“(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

(b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.”

No other relevant statutory basis for liability against Housing Authority is set forth in the complaint. The section that forms the basis of the cause of action relates to vicarious liability for the actions, and inactions, on the part of the other defendants.

While the court is familiar with, and understands, Housing Authorities arguments that cite Yee v. Superior Court (2019) 31 Cal.App.5th 26, and that, “A public entity cannot be held vicariously liable for actions of its employees that are actually acts of the entity itself,” (id, at p. 40), the allegations are not such that they can be viewed as the acts of the Housing Authority itself.

Rather, the allegations, as set forth above, pertain to actions and inactions of the other defendants independent of Housing Authority. Thus, if any of the other defendants may be held liable for their actions taken within the scope of their employment, that were not in fact actions of Housing Authority, and there is no specific immunity for the individuals or Housing Authority, vicarious liability may attach.

Again, the court must deem as true the facts pled. While Housing Authority may, or may not, have a meritorious argument pursuant to another type of properly brought motion, at the pleading stage the argument fails and the motion for judgment on the pleadings, as to the third cause of action, must be denied.

Fourth Cause of Action

As noted above, the fourth cause of action is for Negligent Hiring, Training, Supervision, or Oversight and/or Retention pursuant to Government Code section 815 et seq. and is asserted against Housing Authority.

The allegations, in addition to the general background allegations set forth above, include:

"At all relevant times mentioned herein, Defendants SURF DEVELOPMENT, ESPINOSA, SECURITY COMPANY, SECURITY GUARDS and/or DOES 11-60, were acting within the course and scope of their employment and/or actual, implied, and/or ostensible agency with Defendants HOUSING AUTHORITY and DOES 1-10, and each of them." (Compl., ¶ 68.)

"At all relevant times mentioned herein, Defendants HOUSING AUTHORITY and DOES 1-10, and each of them, were negligent and reckless in regards to the hiring, training, supervision, oversight and/or retention of Defendants SURF DEVELOPMENT, ESPINOSA, SECURITY COMPANY, SECURITY GUARDS, and/or DOES 11-60, in that Defendants HOUSING AUTHORITY and DOES 1-10, knew or should have known that Defendants SURF DEVELOPMENT, ESPINOSA, SECURITY COMPANY, SECURITY GUARDS and/or DOES 11-60, were unfit for the specific tasks to be performed during the course of such employment, i.e. to use due and reasonable care to inspect, manage, maintain, occupy, control, supervise, and/or operate the HOUSING COMPLEX in a reasonably safe condition in a manner that would not unreasonably endanger and/or cause harm to the tenants, including Plaintiff, at the time of the INCIDENT." (Compl., ¶ 71.)

"At all relevant times mentioned herein, Defendants HOUSING AUTHORITY and DOES 1-10, were negligent and reckless by failing to provide any or sufficient training and/or supervision to Defendants SURF DEVELOPMENT, ESPINOSA, SECURITY COMPANY, SECURITY GUARDS and/or DOES 11-60, once hired, and by retaining said Defendants as employees to use due and reasonable care to inspect, manage, maintain, occupy, control, supervise, and/or operate the HOUSING COMPLEX in a reasonably safe condition in a manner that would not unreasonably endanger and/or cause harm to the tenants, including Plaintiff, at the time of the INCIDENT." (Compl., ¶ 72.)

"At all relevant times mentioned herein, Defendants SURF DEVELOPMENT, ESPINOSA, SECURITY COMPANY, SECURITY GUARDS and/or DOES 11-60, were not given sufficient training and/or instruction on safe practices by Defendants HOUSING AUTHORITY and DOES 1-10, and were not qualified to be entrusted with inspecting, managing, maintaining, occupying, controlling, supervising, and/or operating the HOUSING COMPLEX in a reasonably safe condition in a manner that would not unreasonably endanger and/or cause harm to the tenants, including Plaintiff, at the time of the INCIDENT." (Compl., ¶ 74.)

"At all times relevant herein, Defendants HOUSING AUTHORITY and DOES 1-10, and each of them, maintained, enforced, tolerated, permitted, acquiesced in, and ratified the administrative policy, practice and custom of the misconduct as alleged herein, on the part of Defendants SECURITY COMPANY and SECURITY GUARDS. Defendants SECURITY COMPANY and SECURITY GUARDS, and each of them, were unable to competently handle their official duties due to their relative inexperience, incomplete or inadequate training or lack of knowledge. As a result, Defendants SECURITY COMPANY and SECURITY GUARDS, and each of them, were unaware and untrained about the dangers that inadequate security presented to Plaintiff and the proper procedure to ensure his safety." (Compl., ¶ 77.)

Housing Authorities' arguments regarding the fourth cause of action are substantially similar to the arguments related to the third cause of action.

In opposition, plaintiff again cites Government Code section 815.2, subdivision (a), arguing that Housing Authority is vicariously liable.

There is a distinct difference between the allegations contained in the third cause of action and the fourth cause of action. The allegations of the fourth cause of action do pertain to direct actions of Housing Authority rather than to vicarious liability for the actions of Housing Authority employees.

"[I]n both *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 119 Cal.Rptr.2d 709, 45 P.3d 1171 and *Eastburn*, supra, 31 Cal.4th 1175, 7 Cal.Rptr.3d 552, 80 P.3d 656, our Supreme Court carefully reiterated the distinction between the direct liability of a public entity -which must be founded on a specific statute either declaring the entity to be liable or creating a specific duty of care apart from the general tort principles embodied in Civil Code section 1714 - and the vicarious liability of a public entity for torts committed by its employees within the course and scope of their employment with the agency." (de Villers v. County of San Diego (2007) 156 Cal.App.4th 238, 251.) "We find no relevant case law approving a claim for direct liability based on a public entity's allegedly negligent hiring and supervision practices. Instead, the court in *Munoz v. City of Union City* (2004) 120 Cal.App.4th 1077, 16 Cal.Rptr.3d 521 concluded no statutory basis for such a claim existed." (Id. at p. 252.)

"We conclude that a direct claim against a governmental entity asserting negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the entity to the injured party, may not be maintained." (de Villers v. County of San Diego, supra, 156 Cal.App.4th at pp. 255 - 256.)

The motion for judgment on the pleadings will be granted as to the fourth cause of action. Although the court has doubts that plaintiff will be able to amend the cause of action to allege facts that would survive a further challenge, plaintiff will be given leave to amend.

Fifth Cause of Action

As noted above, the fifth cause of action is for Negligence, and is asserted against Espinosa. It is also asserted against Surf Development.

To reiterate, plaintiff alleges that Espinosa is believed to be the onsite property manager of the housing complex. (Compl., ¶ 7.)

The allegations, in addition to the general background allegations set forth above, include:

"At all times herein mentioned, said Defendants SURF DEVELOPMENT, ESPINOSA, DOES 21-30 and DOES 51-60, inclusive, and each of them, owned, maintained, leased, controlled, managed, and/or operated the HOUSING COMPLEX." (Compl., ¶ 88.)

"At all times herein mentioned, Defendants SURF DEVELOPMENT, ESPINOSA, DOES 21-30 and DOES 51-60, inclusive, and each of them, had reasonable cause to anticipate such assault and/or harmful conduct by a tenant of the HOUSING COMPLEX and the probability of injury resulting therefrom." (Compl., ¶ 91.)

“Defendants SURF DEVELOPMENT, ESPINOSA, DOES 21-30 and DOES 51-60, inclusive, and each of them, negligently failed to own, inspect, occupy, manage, maintain, control and/or operate the HOUSING COMPLEX in a reasonably safe condition by causing and allowing a dangerous condition to exist at the HOUSING COMPLEX. Said dangerous condition included but was not limited to the known presence of a violent tenant at the HOUSING COMPLEX, giving rise to reasonable anticipation of violence against the other tenants of the HOUSING COMPLEX, including Plaintiff.” (Compl., ¶ 92.)

“Defendants SURF DEVELOPMENT, ESPINOSA, DOES 21-30 and DOES 51-60, inclusive, and each of them, so negligently owned, operated, inspected, managed, supervised, maintained and/or controlled the HOUSING COMPLEX and breached their duty of care to Plaintiff, as follows (including but not limited to):

“a. Failing to evict a known dangerous and violent tenant from the HOUSING COMPLEX, even after having reasonable notice that said tenant was threatening the safety of the other tenants, including Plaintiff.

“b. Failing to adequately protect Plaintiff and others from unwarranted and unjustified violence and potentially deadly assault, even after having reasonable notice that such criminal/violent acts were foreseeable.

“c. Failing to adequately provide security for the protection of the tenants of the HOUSING COMPLEX, including Plaintiff.

“d. Failing to warn Plaintiff and other tenants that they might be victims of an assault by a fellow tenant of the HOUSING COMPLEX.

“e. Failing to properly own, manage, supervise, monitor, maintain, control the HOUSING COMPLEX in a careful, safe, protective and lawful manner.

“f. Failing to keep the HOUSING COMPLEX in a safe and habitable condition.” (Compl., ¶ 93.)

Housing Authority and Espinosa argue that Espinoza is immune from liability pursuant to Government Code section 820.2, which provides: “Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.”

Plaintiff argues that Government Code section 820.2 immunity does not apply because Espinoza’s actions, or inactions, were ministerial rather than discretionary.

“ ‘[T]o be entitled to immunity the state must make a showing that such a policy decision, consciously balancing risks and advantages, took place.’ ” [Citation.] By contrast, “ ‘lower-level, or ‘ ‘ministerial,’ ” decisions that merely implement a basic policy already formulated’ ” are not entitled to immunity. [Citation.]” (Nasrawi v. Buck Consultants LLC (2014) 231 Cal.App.4th 328, 341.)

The main deficiency in Housing Authority and Espinosa’s arguments is that rather than argue that there are defects on the face of the complaint that preclude the cause of action, they argue the merits of their case. A motion for judgment on the pleadings is not the proper legal procedure for challenging the evidence, or for arguing that plaintiff will not be able to prove their case. What is important is what is alleged. The complaint does not disclose, one way or another, whether Espinoza’s actions, or inactions, should be characterized as discretionary or ministerial.

The allegations in the complaint set forth all elements of a claim of negligence against Espinoza, including a duty to plaintiff as the “onsite property manager.” As such, the motion for judgment on the pleadings, with respect to the fifth cause of action, will be denied.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US